

		representation cause of action. (<i>Id.</i> at 157). As discussed above, the specificity requirements of pleading “the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written” (<i>Id.</i> at 157) do not apply to concealment causes of action. Defendant also relies on <i>White v. Ultramar, Inc.</i> (1999) 21 Cal.4th 563, 566–567, 573. However, this case discussed the appeal of a judgment following a jury trial, and did not discuss pleading requirements for Civ. Code §3294, subd. (b). At the pleading stage, the complaint may rely on ultimate facts. (<i>Spinks v. Equity Residential Briarwood Apartments</i> (2009) 171 Cal.App.4th 1004, 1055.) Accordingly, the court denies the motion to strike. Plaintiffs shall give notice of both rulings.
4	Wheelock vs. Anaheim Regional Medical Center	OFF CALENDAR
5	Castilla vs. Southland Credit Union	CONTINUED TO 12/16/26
6	Garcia-Rodea vs. General Motors LLC	TENTATIVE RULING: For the reasons set forth below, Plaintiff Daniel Garcia-Rodea’s motion for attorney’s fees, is DENIED, without prejudice, and Defendant General Motors, LLC’s motion to tax/strike costs is DENIED. Plaintiff is awarded \$2,110.03 in costs. <u>Pending Motions</u> Plaintiff moves for attorneys’ fees, expenses, and costs award of \$32,915.03, consisting of \$30,805 in fees incurred, \$2,110.03 in costs and expenses. Defendant also moves to tax/strike Plaintiff’s costs/expenses. The court first addresses Plaintiff’s fee award and then addresses Defendant’s motion to tax/strike costs and Plaintiff’s cost award.

Plaintiff's Motion for Attorneys' Fees

A. Standard on Motions for Attorney's Fees

Plaintiff moves for attorneys' fees, expenses, and costs award of \$32,915.03, consisting of \$30,805 in fees incurred and \$2,110.03 in costs and expenses.

On a motion for attorney's fees, the moving party has the burden of: (1) establishing entitlement to an award, and (2) documenting the appropriate hours expended and hourly rates. (*ComputerXpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1020.)

The Song-Beverly Act provides for the recovery of attorney's fees, costs, and expenses. (Civ. Code, § 1794(d).) Courts use the lodestar adjustment method to determine the amount of attorney's fees to award in Song-Beverly actions. (*Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105, 1112.) "[T]he lodestar is the basic fee for comparable legal services in the community." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) It is "based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney . . . involved in the presentation of the case.' [Citation.] [The California Supreme Court] expressly approved the use of prevailing hourly rates as a basis for the lodestar... In referring to 'reasonable' compensation, [the Court] indicated that trial courts must carefully review attorney documentation of hours expended; 'padding' in the form of inefficient or duplicative efforts is not subject to compensation. (*Id.* at 1131-1132.)

When determining a reasonable attorneys' fees award using the lodestar method, the court begins by deciding the reasonable hours the prevailing party's attorney spent on the case and multiplies that number by the reasonable hourly compensation of each attorney. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 998; see also *Environmental Protection Info. Ctr. v. California Dep't of Forestry & Fire Protection* (2010) 190 Cal.App.4th 217, 248.) "The reasonable hourly rate is that prevailing in the community for similar work." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The court may rely on personal knowledge and familiarity with the legal market in setting a reasonable hourly rate. (*Heritage Pac. Fin., LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009; *569 E. County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal. App. 5th 426, 437.)

The court then has the discretion to increase or decrease the lodestar figure by applying a positive or negative multiplier; "such an

adjustment is commonly referred to as a ‘fee enhancement’ or ‘multiplier.’ [Citation.]” (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247 (“Mikhaeilpoor”).) The lodestar may be adjusted based on factors which include the novelty and difficulty of issues presented, complexity of the case, the attorney’s skills, the results achieved, and the extent to which taking the case on a contingent fee basis has precluded the attorney from taking other fee-generating work. (*Ketchum*, 24 Cal.4th at 1132-1134; *Mikhaeilpoor*, 48 Cal.App.5th at 247.) “The purpose of [the] adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services.” (*Ketchum*, 24 Cal.4th at 1132.)

The court is not required to impose a multiplier; the decision is discretionary. (*Mikhaeilpoor*, 48 Cal.App.5th at 247; *Galbisio*, 167 Cal.App.4th at 1089; *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1241.)

“‘[T]he lodestar method vests the trial court with the discretion to decide which of the hours expended by the attorneys were ‘reasonably spent’ on the litigation’ [Citation] and to determine the hourly rates that should be used in the lodestar calculus. [Citation.]” (*Mikhaeilpoor*, 48 Cal.App.5th at 246-247.) “The experienced trial judge is the best judge of the value of professional services rendered in his court [Citation.]” (*Ketchum*, 24 Cal.4th at 1132.)

Here, it is undisputed Plaintiff is the prevailing party over Defendant GM and that Plaintiff is entitled to recover attorney’s fees pursuant to the Song-Beverly Consumer Warranty Act.

Plaintiff submits time records detailing the work performed, amount of time billed, date, and timekeeper. The records show 78 hours of work by non-attorneys, paralegals, and attorneys totaling \$30,805 in attorney’s fees. (Ex. A.) The court notes, however, that the exhibits filed with the court do not actually contain a declaration authenticating any of these records. (See ROA #253). The court finds that the moving papers do not contain admissible evidence establishing Plaintiff’s reasonable rates or reasonable hours expended. Authentication of a writing is required before it may be admitted in evidence. (*People v. Goldsmith* (2014) 59 Cal.4th 258, 266). Authentication requires a person with personal knowledge to lay sufficient foundation “for a trier of fact to find that the writing is what it purports to be, i.e., that it is genuine for the purpose offered.” (*Id.* at 267). Plaintiff’s moving papers fail to meet this standard.